Precedent memo: Juniper Title v. Kask

Clackamas County Circuit Court, decided 2024-05-20 - memo by the employment group

1. Holding

A non-compete for an employee below the salary threshold was enforced only because the employer paid her half of her salary for the whole restricted period.

2. Facts

Kask was an escrow officer; Juniper paid 50 percent of her salary for the 6-month restriction.

3. Firm position

We represented Kask and lost. Garden-leave pay can save an otherwise void non-compete.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.